

25STCV26105 25STCV26105

County: los-angeles

Division: Civil Law and Motion

Department: 515

Hearing date: 2026-08-14

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C515%2C08%2F14%2F2026

Source SHA-256: 3442d8bb91ac2fc2fdd1c3e801870f9da34553176560dd1f03f55a486ec87b2c

Case Number: 25STCV26105 Hearing Date: August 14, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Motion for Summary

Judgment

Defendant's Motion for Summary Judgment is denied. Defendant's alternative Motion for Summary Adjudication is granted as to the implied warranty cause of action and denied as to the express warranty causes of action and the fraudulent inducement cause of action.

BACKGROUND

Plaintiffs Jose Luiz Aguirre and Cristobal H. Cardoza (Plaintiffs) filed this action against American Honda Motor Co., Inc. (Defendant), alleging that they purchased a new 2019 Honda CR-V that subsequently manifested defects.

The causes of action are: (1) Violation of Subdivision (d) of Civil Code Section 1793.2; (2) Violation of Subdivision (b) of Civil Code Section 1793.2; (3) Violation of Subdivision (a)(3) of Civil Code Section 1793.2; (4) Breach of the Implied Warranty of Merchantability; and (5) Fraudulent Inducement by Concealment.

Defendant filed a Motion for Summary Judgment or, in the Alternative, for Summary Adjudication. No Opposition was filed.

REQUEST FOR JUDICIAL NOTICE

Defendant requests judicial notice of the file-stamped Complaint, together with its exhibits. The request is granted as to the Complaint's filing and its date. (Evid. Code, § 452, subd. (d).) The Court does not take judicial notice

of the truth of the matters asserted in the Complaint or in its exhibits.

Plaintiffs allege that Exhibit A to the Complaint is a true and correct copy of the warranty contract and incorporate its terms into the pleading. (Compl., ¶ 7.) Defendant offers that exhibit as evidence of the warranty terms. (Mot., p. 3:8-9.) The Court considers the warranty booklet on that basis.

LEGAL STANDARD

A party is entitled to summary judgment only if there is no triable issue of material fact and the party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).) A moving “defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).) Once the defendant has satisfied that burden, the burden shifts to the plaintiff to “show, by responsive separate statement and admissible evidence, that triable issues of fact exist.” (Ostayan v. Serrano Reconveyance Co. (2000) 77 Cal.App.4th 1411, 1418, disapproved on other grounds by Black Sky Cap., LLC v. Cobb (2019) 7 Cal.5th 156, 165.) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.)

“The burden on a defendant moving for summary judgment based upon the assertion of an affirmative defense is heavier than the burden to show one or more elements of the plaintiff’s cause of action cannot be established.” (Anderson v. Metalclad Insulation Corp. (1999) 72 Cal.App.4th 284, 289.) The defendant “has the initial burden to show that undisputed facts support each element of the affirmative defense.” (Ibid.) The defendant must also demonstrate that under no hypothesis is there a material issue of fact requiring trial. (Id. at pp. 289-290.)

A moving defendant must “present evidence, and not simply point out through argument, that the plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 854-855.)

The absence of an opposition does not relieve the moving party of that initial burden. (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.)

A motion for summary adjudication proceeds in all procedural respects as a motion for summary judgment, and the Court grants it only where the adjudication completely disposes of a cause of action. (Code Civ. Proc., § 437c, subds. (f)(1), (f)(2).)

ANALYSIS

I. Express Warranty Claims

First, Defendant argues that the first three causes of action, each pleaded under Civil Code section 1793.2, arise from an express warranty that expired before February 2021. Defendant contends that the four-year period of Commercial Code section 2725 therefore ran before Plaintiffs filed this action. (Mot., p. 2:21 to p. 3:24.)

The Song-Beverly Consumer Warranty Act contains no limitations period, and an action for breach of warranty under the Act is governed by Commercial Code section 2725. (Mexia v. Rinker Boat Co., Inc. (2009) 174 Cal.App.4th 1297, 1305.)

An action for breach of a contract for sale must be commenced within four years after the cause of action accrues. (Com. Code, § 2725, subd. (1).) “A breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered.” (Com. Code, § 2725, subd. (2).) “A promise to repair defects that occur during a future period is the very definition of express warranty of future performance.” (Krieger v. Nick Alexander Imports, Inc. (1991) 234 Cal.App.3d 205, 217.) Where the discovery exception is at issue, “[a] defendant who moves for summary judgment bears the burden of negating the applicability of the discovery exception for accrual of an action on a future warranty.” (Id. at p. 216.) The period then runs from the time the buyer reasonably concluded that the seller would not repair the vehicle. (Id. at pp. 218-219.)

Here, the warranty contract Plaintiffs plead is the booklet attached to the Complaint. (Compl., ¶ 7.) That booklet contains several warranties. The New Vehicle Limited Warranty covers the vehicle for “3 years or 36,000 miles, whichever comes first.” (Compl., Exh. A, p. 9.) The same page states that “[s]ome parts may have separate coverage under other warranties described in this booklet.” (Ibid.) The Powertrain Limited Warranty covers the powertrain for “5 years or 60,000 miles, whichever comes first.” (Compl., Exh. A, p. 10.) That warranty covers the “[c]ylinder block and head and all internal parts, timing gears and gaskets, timing chain/belt and cover, ... seals and gaskets,” and the transmission case, its internal parts, and the torque converter. (Ibid.) Plaintiffs allege defects “including but not limited to, engine defects, transmission defects.” (Compl., ¶ 11.)

Defendant submits the declaration of the selling dealership’s custodian of records, attaching the dealership’s service records for the vehicle. (Separate Statement, Exh. A, Declaration of Nicole Marquis (Marquis Decl.), ¶ 4.) Those records show 36,721 miles at a service visit in early 2021. (Marquis Decl., attached records, invoice No. F1CS728229.) The vehicle therefore passed 36,000 miles before that visit. That showing establishes only that the New Vehicle Limited Warranty expired. The engine and transmission defects Plaintiffs plead fall within the Powertrain Limited Warranty. (Compl., Exh. A, p. 10.) Defendant offers no evidence of when that warranty expired.

Defendant’s argument assumes that the four-year period accrues no later than the last day of the applicable warranty period. (Mot., p. 3:2-4.) Defendant adds that the Court need not fix the exact date the warranty expired, or the exact date Plaintiffs discovered a breach. (Mot., p. 3:11-16.) That is not how the burden runs. A promise to repair defects during a stated term of years or miles extends to future performance, so accrual turns on discovery. To meet its burden, Defendant must negate the discovery exception. (Krieger, *supra*, 234 Cal.App.3d at pp. 216-217.) Defendant offers no evidence of when Plaintiffs learned, or reasonably should have learned, that Defendant would not repair the vehicle. The service records Defendant submits show no complaint of engine or transmission symptoms before September 2021. (Marquis Decl., ¶ 4 & attached records.) The first complaint of engine symptoms in those records appears on April 7, 2025. (Marquis Decl., attached records, invoice No. F1CS201350.)

Defendant has not negated the discovery exception, and has not shown that the first three causes of action accrued more than four years before Plaintiffs filed this action. Defendant therefore has not carried its initial burden on

the limitations defense. The burden did not shift to Plaintiffs. Accordingly, summary adjudication of the first, second, and third causes of action is denied.

II. Implied Warranty

Next, Defendant argues that the fourth cause of action, for breach of the implied warranty of merchantability, accrued no later than one year after the sale and is barred by the same four-year period. (Mot., p. 3:26 to p. 4:12.)

A cause of action for breach of warranty “accrues when the breach occurs, regardless of the aggrieved party’s lack of knowledge of the breach.” (Com. Code, § 2725, subd. (2).) The statute makes one exception, for a warranty that “explicitly extends to future performance of the goods” where “discovery of the breach must await the time of such performance.” (Ibid.) The second condition depends on the first. “Such performance” is the future performance the warranty explicitly promises, and a warranty that promises none leaves nothing for discovery to await.

An implied warranty promises none. It arises by operation of law rather than by agreement, and it undertakes nothing about how the goods will perform at any future time. (Cardinal Health 301, Inc. v. Tyco Electronics Corp. (2008) 169 Cal.App.4th 116, 135.) The two warranties are also breached in different ways. A promise to repair defects during a stated term is breached by the warrantor’s failure to repair, which cannot occur at delivery and may not occur for years. (Krieger, supra, 234 Cal.App.3d at pp. 218-219.)

The implied warranty is breached by the condition of the goods. “In the case of a latent defect, a product is rendered unmerchantable, and the warranty of merchantability is breached, by the existence of the unseen defect, not by its subsequent discovery.” (Mexia, supra, 174 Cal.App.4th at p. 1305.) That breach is complete when the defect exists. A buyer may not learn of a latent defect for years, and the statute makes accrual independent of that. (Com. Code, § 2725, subd. (2).) Civil Code section 1791.1, subdivision (c) fixes the period during which the implied warranty exists. It does not supply the promise of future performance the exception requires.

Here, Plaintiffs took delivery of the vehicle on March 3, 2019, with 31 miles on the odometer. (Marquis Decl., ¶ 4 & attached records, invoice No. F1CS728229; see Compl., ¶ 6.) The express warranty accompanying the vehicle lasted longer than one year, so the implied warranty ran for one year following

the sale, to March 3, 2020. (Compl., Exh. A, p. 9; Civ. Code, § 1791.1, subd. (c).) The four-year period expired no later than March 3, 2024, roughly eighteen months before Plaintiffs filed this action. (RJN, Exh. A.)

Plaintiffs plead that equitable tolling, the discovery rule, the fraudulent concealment rule, equitable estoppel, the repair doctrine, and class action tolling have tolled the limitations periods. (Compl., ¶ 23.) The discovery rule does not postpone accrual of this claim, for the reasons stated above. The others are tolling doctrines, which Commercial Code section 2725 leaves undisturbed. (Com. Code, § 2725, subd. (4).) Tolling is not an element of the limitations defense. It suspends a period that has already begun to run, and a plaintiff who invokes it to save a claim time-barred on its face must plead facts that would support it. (*Mills v. Forestex Co.* (2003) 108 Cal.App.4th 625, 640.) Paragraph 23 names six doctrines and pleads no facts connecting any of them to this vehicle, this transaction, or this Defendant. Once Defendant established that the claim is untimely on the face of the record, the burden shifted to Plaintiffs to produce admissible evidence raising a triable issue on tolling. (Code Civ. Proc., § 437c, subd. (p)(2).) Plaintiffs filed no responsive separate statement and point to nothing supporting any of the six doctrines. (See *Mills*, supra, 108 Cal.App.4th at p. 651.)

Defendant has met its initial burden of showing a complete defense to the fourth cause of action. The Court concludes that no triable issue of material fact remains as to the timeliness of that claim. Accordingly, summary adjudication of the fourth cause of action is granted.

III. Fraudulent Concealment

Finally, Defendant seeks adjudication of the fifth cause of action, for fraudulent inducement by concealment, on the ground that the claim accrued at the March 3, 2019 sale and is barred by the three-year period of Code of Civil Procedure section 338, subdivision (d). (Mot., p. 4:13 to p. 5:21.)

An action for relief on the ground of fraud must be brought within three years, and the cause of action “is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.” (Code Civ. Proc., § 338, subd. (d).) A cause of action accrues when the plaintiff has reason to suspect an injury and some wrongful cause, “unless the plaintiff pleads and proves that a reasonable investigation at that time

would not have revealed a factual basis for that particular cause of action.” (Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 803.) The burden of showing diligence rests on the plaintiff. (Id. at p. 808.)

Because Plaintiffs would bear that burden at trial, Defendant’s initial burden on this Motion is not to prove when Plaintiffs discovered the alleged concealment. Defendant must instead present evidence that Plaintiffs neither possess nor can reasonably obtain evidence of delayed discovery. (Aguilar, supra, 25 Cal.4th at pp. 854-855.) Factually devoid discovery responses are one way to make that showing. (Union Bank v. Superior Court (1995) 31 Cal.App.4th 573, 590.)

Here, Defendant asserts that Plaintiffs have not produced and cannot produce evidence to invoke the discovery rule. (Mot., p. 5:19-20.) Defendant submits no discovery response, deposition excerpt, or admission from Plaintiffs. An assertion in a memorandum is not evidence. (Aguilar, supra, 25 Cal.4th at pp. 854-855.)

Defendant offers no evidence of when Plaintiffs suspected or had reason to suspect that Defendant concealed a defect in the engine. Defendant’s records show no report of engine symptoms before April 7, 2025. (Marquis Decl., ¶ 4 & attached records.) On that date, at 110,429 miles, Plaintiffs reported that the vehicle would not exceed 20 miles per hour, and the dealership attributed misfiring to an excessively gapped spark plug in the fourth cylinder. (Marquis Decl., attached records, invoice No. F1CS201350.) On August 22, 2025, the dealership recorded a diagnostic trouble code for a misfire in the third cylinder and, after a cylinder leakage test, a cylinder head gasket failure. (Marquis Decl., attached records, invoice No. F1CS239589.) Plaintiffs plead an Engine Defect producing loss of power, stalling, and engine misfires. (Compl., ¶ 47.) On this record, the first appearance of those symptoms falls within three years of the date Plaintiffs filed this action.

Defendant suggests in a footnote that the fifth cause of action fails on grounds apart from the statute of limitations. (Mot., p. 5, fn. 1.) The Notice of Motion seeks summary judgment on the ground that Plaintiffs’ claims are time-barred. (Notice of Motion, p. 2:2-3.) The Court does not reach a ground the Motion does not notice.

Defendant has not met its initial burden as to the fifth cause of action.

Accordingly, summary adjudication of the fifth cause of action is denied.

Because four of the five causes of action survive, Defendant is not entitled to summary judgment.

CONCLUSION

Defendant's Motion for Summary Judgment is denied. Defendant's alternative Motion for Summary Adjudication is granted as to the implied warranty cause of action and denied as to the express warranty and fraudulent inducement causes of action.